

Counterfactual Motion to Stay Mandate Pending Certiorari

Filed: June 26, 2026 Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED

United States Court of Appeals for the Fourth Circuit

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

Asterglen Freight Software, Inc. moves under Federal Rule of Appellate Procedure 41(d) to stay mandate while it prepares a petition for a writ of certiorari. The Court entered judgment on June 8, 2026 dismissing the appeal and remanding because the district court's Rule 54(b) certification lacked an express determination that there was no just reason for delay. The time to seek rehearing expired June 22 without a petition. Mandate would ordinarily issue June 29.

This motion is filed on June 26, before the ordinary date. Asterglen requests a stay of no more than ninety days from an order granting relief, subject to continuation upon a timely certiorari filing and prompt notice of any disposition. The proposed petition will concern the treatment of an abbreviated Rule 54(b) certification and the availability of a corrective remand. It will not ask the Supreme Court to decide the contract merits or review any factual dispute concerning Section 9.2.

Copper Kestrel and Meridian Silt oppose a stay. They maintain that the June 8 opinion applies the plain certification requirement and that continued district-court proceedings do not justify withholding mandate.

Asterglen requests expedited consideration on the existing papers and accepts any reporting condition needed to keep the Court informed while counsel completes the proposed petition within the bounded period sought.

Question proposed for certiorari

Asterglen proposes to ask whether a court of appeals must dismiss for lack of a proper Rule 54(b) certification when the district court expressly grants a motion requesting certification, enters a separate judgment on a claim dismissed with prejudice, and unmistakably intends immediate review, but does not repeat the phrase “no just reason for delay” in its order. A related part of the question asks whether the appellate court may retain the appeal while directing the district court to state the determination more fully.

The question arises from a completed Count I judgment and a developed appellate record. The district court dismissed Asterglen's \$480,000 contract claim with prejudice on January 12. It granted Asterglen's certification motion and entered separate judgment on February 4. Count II and Copper Kestrel's counterclaim remained pending. After briefing, the Court obtained a June 5 status certificate confirming that no additional findings had been entered, then dismissed on June 8 without reaching summary judgment.

The proposed petition would rely on those orders, the certification motion, the separate judgment, the appellate briefs, and the Court's opinion. No new evidence is needed. Asterglen would argue that treating an express grant as legally silent elevates formula over a deliberate judicial act and that a short clarification procedure better respects both the text of Rule 54(b) and the limits of appellate jurisdiction.

Substantial question and prospect of review

Rule 41(d) requires a motion to show that a contemplated certiorari petition will present a substantial question and that good cause supports withholding mandate. Asterglen recognizes that review is discretionary and that an asserted error in one case is insufficient. The proposed question concerns the administration of partial judgments across federal courts and the consequence of a certification order that clearly grants relief but states its determination incompletely.

The competing principles are substantial. Rule 54(b) demands an express determination so that immediate appeal is deliberate and reviewable. At the same time, federal procedure ordinarily looks to the substance of an order and permits correction of a curable statement defect. The June 8 opinion chose dismissal even though the district court granted the certification motion and the parties had completed merits briefing. Asterglen contends that the proper treatment of that circumstance warrants review and that a different result is reasonably possible.

Appellees respond that the question is controlled by the rule's text and the shared character of the unresolved claims. They emphasize overlapping witnesses, the disputed July 8 communications, the July 22 termination, and possible setoff. Asterglen does not deny those connections. It submits that they bear on the district court's certification reasoning, not on whether an appellate court may obtain that reasoning through a limited remand rather than discard a pending appeal.

Good cause and the parties' interests

Good cause exists because issuance would return the matter to the district court while Asterglen prepares a petition directed to whether the appeal should have remained here. Count II and the counterclaim could proceed through additional motions, pretrial preparation, or settlement activity before the jurisdictional question is resolved. If review resulted in reinstatement, the parties and courts could be required to coordinate overlapping district and appellate proceedings concerning the same June and July events.

Asterglen does not contend that ordinary litigation expense alone always warrants a stay. The unusual feature is that the contemplated petition concerns the forum and timing for review of an already final Count I judgment. A short pause would preserve the present allocation of authority without disturbing the district court's January 12 ruling or granting Asterglen any contract recovery. The requested stay would be bounded, conditioned on diligent preparation, and subject to immediate notice if the petition is abandoned or denied.

Copper Kestrel and Meridian argue that remand should proceed without further delay because the appellate judgment did not vacate Count I and because the remaining claims were filed more than a year ago. Asterglen acknowledges that interest. It proposes ninety days rather than an indefinite period and will seek an extension only for good cause. The balance favors a short hold, it submits, because mandate would change the forum posture that the proposed petition directly challenges.

Requested terms, Rule 41 timing, and service

Asterglen asks the Court to stay mandate for ninety days from entry of an order granting this motion. If a certiorari petition is filed during that period, the stay should continue as Rule 41(d) provides until final disposition by the Supreme Court. If Asterglen elects not to file, withdraws the proposed petition, or receives a denial, counsel will notify the clerk immediately so that mandate may issue unless another lawful order directs otherwise. No bond is necessary because the judgment dismisses and remands rather than awards money.

This filing requests affirmative stay relief, but Asterglen recognizes that the motion itself is not an order granting that relief. It nevertheless is a timely motion filed before June 29. Rule 41(b) directs the clerk, if the motion is denied, to compare the ordinary June 29 date with the date seven days after entry of the denial and to issue on whichever is later. While the timely motion remains undecided, mandate should not issue in a manner that would defeat that express calculation.

Counsel certifies electronic filing and service on June 26, 2026. Counsel conferred with appellees, who oppose the requested stay and reserve all arguments concerning certiorari, jurisdiction, and district-court proceedings. The motion relies only on the existing record and post-judgment orders. Asterglen respectfully requests prompt consideration before the ordinary issuance date and an order stating whether mandate is stayed or, if relief is denied, the resulting Rule 41(b) date.

Respectfully submitted,

COUNSEL FOR ASTERGLEN FREIGHT SOFTWARE, INC.